

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

PATRICIA CHARLES, as guardian of minor child
L.W.,

Petitioner,

-against-

THE CITY OF NEW YORK,

Respondent.

Index No.: _____

**VERIFIED PETITION FOR AN
ORDER GRANTING PETITIONER
LEAVE TO CORRECT A GOOD
FAITH MISTAKE IN THE TIMELY-
SERVED PRIOR NOTICE OF
CLAIM, OR, ALTERNATIVELY,
GRANTING LEAVE TO FILE A
LATE NOTICE OF CLAIM**

Petitioner designates Kings County
as the place for this petition. The basis of
the venue is place of occurrence.

MATTHEW CHRISTIANA, an attorney duly admitted to practice law before the courts
of the State of New York, hereby affirms the following under penalty of perjury pursuant to
CPLR § 2106:

1. I am a member of Kopke Christiana & Rastetter LLP, attorneys for Patricia
Charles, as guardian of minor child L.W. (hereinafter “Petitioner”), and I am fully familiar with
the matters set forth herein.

2. I submit this affirmation in support of the instant petition for an order pursuant to
General Municipal Law § 50-e(6) granting Petitioner leave to correct a good faith mistake in
Petitioner’s timely-served prior notice of claim, or, alternatively, granting Petitioner leave to
serve a late notice of claim pursuant General Municipal Law § 50-e(5), together with such other
and further relief as the court deems just, proper, and equitable. Petitioner has not previously
moved for the relief sought by this motion.

PRELIMINARY STATEMENT

3. This Petition concerns a notice of claim for injuries sustained by minor child L.W. on March 10, 2023 when she was assaulted, battered, unlawfully seized, falsely arrested, and intentionally or negligently subjected to severe emotional distress by two members of the New York Police Department (“NYPD”)—Officers Melissa L. Stines (Shield No. 7612) and Jonathan Gomez (Shield No. 22992)—in conjunction with other as yet unknown members of the NYPD.

4. Through prior counsel, on June 8, 2023, L.W. served upon the City of New York a timely and very detailed notice of claim regarding the March 10, 2023 incident (annexed hereto as Exhibit 1). However, L.W.’s prior counsel inadvertently listed L.W. as the claimant in the June 8, 2023 notice of claim instead of listing L.W.’s grandmother and legal guardian Patricia Charles (“Ms. Charles”) as the claimant on behalf of L.W. Accordingly, when L.W. appeared for a hearing pursuant to General Municipal Law § 50-h, the law firm representing the City of New York refused to proceed with the hearing because, according to the City’s representative, the notice of claim was not filed by L.W.’s legal guardian. A transcript of said proceeding is annexed hereto as Exhibit 2.

5. Therefore, Petitioner now brings this action seeking an order pursuant to General Municipal Law § 50-e(6) granting Petitioner permission to correct the good faith mistake in the previously served June 8, 2023 notice of claim and substituting Ms. Charles in place and instead of L.W. as the claimant therein, or, alternatively, granting Petitioner leave to serve a late notice of claim pursuant General Municipal Law § 50-e(5), together with such other and further relief as the court deems just, proper, and equitable.

6. Petitioner’s motion should be granted because the City of New York would suffer

no substantial prejudice since Petitioner's proposed amended notice of claim (annexed hereto as Exhibit 3) and, alternatively, Petitioner's proposed late notice of claim (annexed hereto as Exhibit 4) concern the same incident and encompass nearly verbatim the same set of facts and theories of liability. The only material difference in the amended notice of claim and the notice of claim Petitioner alternatively seeks leave to serve at this juncture is the substitution of Ms. Charles, as the legal guardian of L.W., in place and instead of L.W. as claimant.

FACTUAL BACKGROUND

7. At approximately 9:00 a.m. on March 10, 2023, L.W. entered the Flatbush Ave-Brooklyn College Subway station in Brooklyn to go to school. L.W. recently transferred to a new school and had not yet received her student metro card. As a result, when she approached the subway turnstile, she was unable to proceed onto the subway. *See Exhibit 1.*

8. L.W. thereafter approached NYPD Officers Stines and Gomez of the 70th Precinct who were present and asked to be allowed to board the train to go to school. *See id.*

9. Officer Gomez informed L.W. that she could proceed past the turnstile without paying. Relying on Officer Gomez's instruction, L.W. proceeded past the turnstile without paying and boarded the subway train. *See id.*

10. Moments after L.W. boarded the train, the two officers entered the train and Officer Stines yelled at L.W. to get off. However, the train doors closed and L.W. was unable to exit before it pulled away from the station. *See id.*

11. Once the train arrived at the Newkirk Avenue stop, the Officers grabbed L.W., twisted her arm, and handcuffed her. *See id.*

12. L.W. screamed in pain, started having trouble breathing, and became lightheaded.

L.W. also suffered a left shoulder strain which ultimately required her to wear a sling for two weeks. *See id.*

13. The officers did not read L.W. her rights or ask her for her legal guardian's information. L.W. nevertheless screamed for onlookers to call her grandmother/legal guardian. *See id.*

14. The officers then took L.W. outside to a transport vehicle with two other officers inside. The officers pushed L.W. into the vehicle and told her to sit back. L.W., however, could not sit back because her arms were behind her and her shoulder hurt, and promptly informed the officers of as much. Still, an officer pulled L.W.'s seatbelt back in a forceful manner, forcing L.W.'s body backwards, further hurting her shoulder and exacerbating the injury. *See id.*

15. At the precinct, the officers still did not ask for L.W.'s guardian's information, and instead took L.W.'s information. *See id.*

16. Officer Stines and another officer started touching L.W. without warning or consent while L.W. repeatedly informed the officers that she was uncomfortable. *See id.*

17. The officers thereafter placed L.W. in a holding cell. While in the holding cell, L.W. began to menstruate. As a result, L.W. informed the officers that were watching her that she needed a menstrual pad and also asked to use the bathroom. The officers did not abide, and instead told her that she had to wait for Officer Stines to return, which took a considerable amount of time. During that time, L.W. kept asking for the officer to get another female officer or call Officer Stines to take her to the bathroom. So much time had passed, though, that L.W. began to smell her menstrual flow, which was humiliating. *See id.*

18. On June 8, 2023, through prior counsel, L.W. filed a notice of claim with the New

York City Comptroller's Office, alleging that City officials subjected her to, *inter alia*, assault, battery, unlawful seizure, false arrest, and intentional, reckless, and negligent infliction of emotional distress, as well as other violations of the New York State and United States constitutions and applicable New York State and New York City statutes. *See id.*

19. On September 14, 2023, L.W. appeared for a hearing pursuant to General Municipal Law § 50-h. Immediately, the attorney representing the City of New York refused to proceed with the hearing because, according to the City's representative, the notice of claim was filed by L.W. and not on behalf of L.W. by her grandmother/legal guardian. The City's representative instructed L.W. to file an amended notice of claim and terminated the § 50-h hearing. *See Exhibit 2.*

ARGUMENT

POINT I

PETITIONER'S REQUEST TO CORRECT THE PREVIOUSLY FILED NOTICE OF CLAIM SHOULD BE GRANTED.

A. Any errors or omissions in Petitioner's notice of claim were made in good faith, and the requested amendment does not alter the nature or theory of the claim.

20. General Municipal Law ("GML") § 50-e(6) provides that a court may grant a petitioner's request to correct a previously filed notice of claim due to "mistake, omission, irregularity or defect...not pertaining to the manner or time of service" so long as "the other party" will not be prejudiced. GML § 50-e(6); *see also Puzio v. City of New York*, 24 A.D.3d 679 (2d Dept 2005). Amendments attempting to substantively change the nature of the claim or theory of liability are impermissible and will be denied. *Castillo v. Kings Cnty Hosp. Ctr.*, 149 A.D.3d 896 (2d Dept 2017).

21. Here, the mistake in the original and timely-served notice of claim was made in good faith and the amendment Petitioner seeks to make merely corrects a “technical mistake[], defect[] or omission[].” *Castillo*, 149 A.D.3d at 897. The original notice of claim was detailed and timely filed. The proposed amended notice of claim does not alter the facts or legal theories at all; it merely clarifies that the claim is being brought by L.W.’s legal guardian Ms. Charles on behalf of L.W., upon the request of the City’s representative. *See Exhibits 1-3*.

B. Respondent City will not be prejudiced by Petitioner’s simple amendment clarifying that the claim is brought by Ms. Charles on behalf of her minor granddaughter.

22. It is well established that the types of non-prejudicial amendments, as contemplated by GML § 50-e(6), are those of a non-substantive nature. *Castillo v. Kings Cnty Hosp. Ctr.*, 149 A.D.3d at 897; *Guerra v. New York City Hous. Auth.*, 76 Misc. 3d 1219(A) at * 5 (Sup. Ct. Bx. County 2022).

23. Here, the proposed amendment is non-substantive. Indeed, it does not alter any of the legal theories, modify any facts, or add any additional parties. It merely clarifies—as requested by the City representative—that because L.W. is a minor, the claims are being brought by Ms. Charles—her legal guardian—on behalf of L.W. Amendment in this case, therefore, is proper. *See Exhibits 1-3; Pisano v. Metro. Tr. Auth.*, 191 A.D.3d 907 (2d Dept 2021) (amendment proper where the mistake was non-substantive, there was no substantial change in the theory of liability, and the respondent could not establish prejudice, in part because the motion for amendment was made prior to the filing of the complaint).

POINT II**IN THE ALTERNATIVE, PETITIONER SHOULD BE GRANTED LEAVE TO FILE A LATE NOTICE OF CLAIM**

24. Courts have broad discretion in considering an application for leave to serve a late notice of claim pursuant to GML § 50-e(5). *Matter of Newcomb v. Middle Country Cent. Sch. Dist.*, 28 N.Y.3d 455, 465 (2016). Pursuant to GML § 50-e(5), courts take into account several factors, including whether the public corporation acquired actual knowledge of the essential facts constituting the claim within a reasonable time thereafter, whether the public corporation would be prejudiced by a late notice of claim, and whether there is a reasonable excuse for the delay. All three factors favor Petitioner.

A. Respondent timely acquired actual knowledge of Petitioner's claim.

25. GML § 50-e(5) provides that on a motion for leave to serve a late notice of claim, a court shall consider, “in particular, whether the public corporation or its attorney . . . acquired actual knowledge of the essential facts constituting the claim within the time specified in subdivision one of this section [90 days] or within a reasonable time thereafter.” GML § 50-e(5).

26. Acquiring actual knowledge within a reasonable time permits a corporation or municipality to investigate the claim and prevents substantial prejudice. *See Matter of Mercedes v. City of New York*, 169 A.D.3d 606, 607 (1st Dept 2019) (where the City received actual notice of the facts underlying the claim, there was a “plausible argument that the City will not be substantially prejudiced in investigating and defending the claim”).

27. Generally, a municipality is charged with actual knowledge where its own employees engaged in the conduct which gave rise to the claim. *See, e.g., Ansong v. City of New York*, 308 A.D.2d 333, 333-334 (1st Dept 2003) (finding that the respondent City's claim that it

lacked actual knowledge was “completely refuted by the fact that the officers who allegedly assaulted petitioner would, as respondent’s employees, have had immediate knowledge of the events giving rise to this dispute”); *Erichson v. City of Poughkeepsie Police Dept.*, 66 A.D.3d 820 (2d Dept 2009) (municipality’s police department acquired actual knowledge of assault claim since police department employees had engaged in conduct at issue); *Ragland v. New York City Hous. Auth.*, 201 A.D.2d 7, 11 (2d Dept 1994) (in determining actual knowledge, “a factor of considerable significance” is whether “the acts of the police ... give rise to the very claim set forth in the proposed notice”).

28. Here, the notice of claim that Petitioner seeks leave to serve at this juncture is identical in all material respects to the notice of claim previously served on the City by L.W. on June 8, 2023. *Compare* Exhibit 1 *with* Exhibit 4. Indeed, the only material difference is the substitution of the claimant: Ms. Charles, as legal guardian of her minor granddaughter, L.W., for L.W. herself. Considering the crux of whether to grant leave to serve a late notice of claim is notice to the respondent, there can be no dispute that the City of New York has/had actual notice of L.W.’s claim. *See, e.g., Montero v. New York City Health & Hospital Corp.*, 17 A.D.3d 550, 550 (2d Dept 2005) (actual notice of underlying claim sufficient regardless of a showing of prejudice or reasonable excuse).

29. As Respondent City of New York acquired timely knowledge of the essential facts constituting the claim through the previously submitted and timely notice of claim, the delay in service of the proposed late notice of claim is inconsequential.

B. Respondent City is not prejudiced by the delay in serving a notice of claim.

30. In addition to considering actual notice, courts consider whether late service of a

notice of claim would substantially prejudice the respondent. GML § 50-e(5) (listing factors to consider in determining an application for late service of a notice of claim); *Matter of Newcomb*, 28 N.Y.3d at 457-58.

31. In *Matter of Newcomb v. Middle Country Cent. Sch. Dist.*, the Court of Appeals articulated the standard for “substantial prejudice”:

The public corporation . . . is in the best position to know and demonstrate whether it has been substantially prejudiced by the late notice. We have long held in other contexts that where the facts are within the defendant’s peculiar knowledge, . . . he [or she] should, therefore, prove them. Requiring the public corporation to come forward with a particularized showing is appropriate in this context given that the public corporation is in the best position to provide evidence as to whether the late notice has substantially prejudiced its ability to defend the claim on the merits.

28 N.Y.3d at 457-58 (internal quotations marks and citations omitted). While the initial burden rests with the petitioner to show that there is no substantial prejudice, that showing “need not be extensive but the petitioner must present some evidence or plausible argument that supports a finding of no substantial prejudice.” *Id.* at 466.

32. Upon an initial showing of lack of prejudice to the respondent, the respondent must demonstrate particularized, substantial prejudice. “Generic arguments and inferences will not establish substantial prejudice in the absence of facts in the record to support such a finding.” *Id.* (citing *Matter of Sarkisian Bros. v. State Div. of Human Rights*, 48 N.Y.2d 816, 818 (1979) (“The mere passage of time normally will not constitute substantial prejudice in the absence of some showing of actual injury.”)).

33. Where a respondent has “knowledge of petitioner’s claims, no prejudice would result if petitioner were permitted to file a late notice of claim.” *Jaime v. City of New York*, 205

A.D.3d 544, 544 (1st Dept 2022).

34. Here, the City of New York would suffer no prejudice, much less substantial prejudice, from the delay in serving Petitioner's proposed late notice of claim. Indeed, as noted above, Petitioner's notice of claim mirrors the timely-served June 8, 2023 notice of claim in all material respects.

35. Upon information and belief, considering the June 8, 2023 Notice of Claim was timely filed, there is no investigation by the City of New York that would have been triggered had Ms. Charles, as legal guardian of her minor granddaughter, L.W. (instead of L.W. herself) filed the Notice of Claim within ninety days that cannot be initiated today, or that was not *already* conducted upon receipt of the previous (and materially identical) June 8, 2023 notice of claim.

36. Indeed, the very "purpose of the statute [requiring a timely notice of claim] is to give the municipality the opportunity to investigate the claim." *Matter of Rodriguez v. City of New York*, 172 A.D.3d 556, 558 (1st Dept 2019) (reversing trial court denial of motion for leave to serve late notice of claim where defendant City did not show substantial prejudice in the ability to investigate the claim despite passage of time); *Heredia v. City of New York*, 141 A.D.2d 473, 474 (1st Dept 1988) ("The only legitimate purpose served by section 50-e is the opportunity for prompt investigation and preservation of evidence of the facts and circumstances of claims asserted against public corporations . . .").

37. Because Respondent City has likely already fully and fairly investigated Petitioner's claim as a result of L.W.'s materially identical June 8, 2023 notice of claim, the City is not prejudiced by the delay in serving a notice of claim.

C. There is a reasonable excuse for the delay.

38. Another factor a court should consider on an application for late service of a notice of claim is whether a petitioner had a reasonable excuse for the delay. *Matter of Rodriguez v. City of NY*, 172 A.D.3d 556, 557 (1st Dept 2019).

39. Here, Petitioner's delay in filing a notice of claim is attributable in large part to the City of New York's refusal to proceed with the 50-h hearing stemming from the original, June 8, 2023 notice of claim filed by L.W. herself—instead of by Ms. Charles on behalf of L.W.

40. In any event, “the lack of a reasonable excuse is not, standing by itself, sufficient to deny an application for leave to serve and file a late notice of claim, especially where . . . the respondent has had the opportunity to investigate the petitioner's claims.” *Ansong*, 308 A.D.2d at 334 (internal citations omitted). “When an application for leave to serve a late notice of claim is timely made within the applicable statute of limitations, the absence of a reasonable excuse for the delay ‘is not necessarily fatal when weighed against other relevant factors, including prejudice to the municipality and whether it obtained actual knowledge within the 90-day period or shortly thereafter. *See Johnson v. City of N.Y.*, 302 A.D.2d 463, 463 (2nd Dept. 2003). A lack of reasonable excuse is not dispositive when there is timely actual notice and the absence of prejudice. *Matter of Khan v. N.Y.C. Health & Hosps. Corp.*, 135 A.D.3d 940, 942 (2nd Dept 2016).

41. Petitioner's application for leave to serve a late notice of claim has been timely made within the applicable statute of limitations, which expires on June 8, 2024.

42. Respondent City of New York, through its agents and employees, had actual knowledge of the facts constituting Petitioner's claim as it arises from actions that L.W.'s notice of claim timely identified.

43. The delay in serving a notice of claim does not prevent Respondent City of New York from fully and fairly investigating the circumstances of Petitioner's claim.

44. There is no prejudice to Respondent City of New York, substantial or otherwise.

45. There is no indication that Respondent understands this claim to be late. Instead, during L.W.'s GML § 50-h hearing, Respondent instructed the filing of a claim that included Ms. Charles' on behalf of L.W., as her legal guardian.

CONCLUSION

46. For all of the foregoing reasons, it is respectfully requested that the Court issue an order granting Petitioner leave to correct the good faith mistake in Petitioner's timely-served prior notice of claim, or, alternatively, granting Petitioner leave to serve a late notice of claim pursuant General Municipal Law § 50-e(5), together with such other and further relief as the court deems just, proper, and equitable.

Dated: May 3, 2024
Brooklyn, New York

Respectfully submitted,
KOPKE CHRISTIANA & RASTETTER LLP

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VERIFICATION

MATTHEW CHRISTIANA, an attorney duly admitted to practice law before the courts of the State of New York, hereby affirms the following under penalty of perjury pursuant to CPLR § 2106:

That I am the attorney for the Petitioner in the within action.

That I have read the foregoing verified petition and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe them to be true.

That the reason this verification is made by your affirmant and not by the petitioner is that the petitioner is not presently in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts, and documents contained in petitioner's file maintained by your affirmant's office.

Dated: May 3, 2024
Brooklyn, New York

Respectfully submitted,
KOPKE CHRISTIANA & RASTETTER LLP

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